

Magistrate Vs Ministry

S.P. TAMANG

Ishrat Jahan and Javed Ghulam Sheikh alias Pragnesh Pillai were not linked to any terrorist outfit and were innocent.

The other two deceased, Amjad Ali alias Rajkumar Akbar Ali Rana and Jishan Johar, were not Pakistani nationals.

The four had been killed by Gujarat police officers to please Chief Minister Narendra Modi and earn rewards and promotions.

Using forensic evidence, the report creates grounds for a CBI probe into the case as it clearly says that the encounter was staged.

UNION HOME MINISTRY

The affidavit filed by the ministry in the Gujarat High Court says that both were actively involved with the Lashkar-e-Toiba.

Both were Pakistani nationals and LeT operatives and had crossed over from the Kashmir border to spread terror and kill national and state leaders.

Central security agencies had passed on the information about the movement of the four in Gujarat to the state intelligence agencies.

The ministry opposes a CBI probe by citing the anti-national motives and antecedents of those killed in the encounter.

SHAILESH RAVAL



MODI CONTINUES TO BE HAUNTED BY THE GHOSTS OF POLICE ENCOUNTERS

suspended DIG D.G. Vanzara who has been in jail for the last two years over the Sohrabuddin encounter case.

As the state Government's spokesman and Minister Jaynarayan Vyas observed, "By staying Tamang's report, the high court has restored judicial propriety or else the report would have become a judicial blot for the way it was filed." But what was shocking about Tamang's report is that it was against the affidavit filed by the Union Home Ministry in the Gujarat High Court last month in which it supported the contentions of the state police. Tamang has said that Javed and Jahan appeared innocent while the two others killed in the encounter, Amjad Ali alias Rajkumar Akbar Ali Rana and Jishan Johar, were Indians and not Pakistani nationals as alleged by the Gujarat Police.

The Home Ministry's affidavit, which rejected the demand of a CBI inquiry in the case, is an eye-opener. It says that the four killed were connected with the LeT and had plans of killing national and state leaders, and that it was the Central Intelligence Bureau which had passed on the information to the Gujarat Police about the four, including two alleged LeT operatives, Rana and Johar. It says that

An account of major encounters in Gujarat since 2002. What is common in these cases is that almost all encounters took place near Ahmedabad.

JUNE 2003

Ganesh Khute and Mahendra Jadhav: The police said they were linked to Dawood Ibrahim and had plans to kill BJP leaders Ashok Bhatt and Bharat Barot

JUNE 2004

Ishrat Jahan and three others: According to the police, they were linked to the LeT, had plans to kill Modi and spread terror in India

NOVEMBER 2005

Sohrabuddin and his wife Kausarbi: The police claimed he was facing criminal charges, was an LeT agent and was planning to kill top political leaders

DECEMBER 2006

Tulsi Prajapati: The police said he was a member of the Sharif Pathan gang and tried to escape while being taken by train from Ahmedabad to Udaipur, Rajasthan

state magisterial services come under the high court?

The magistrate neither heard police officials involved in the case, including the then Ahmedabad police commissioner K.R. Kaushik, nor the forensic experts and not even the doctors who conducted the post-mortem of the four. Tamang's conclusion is mainly based on forensic grounds. The report also says that the en-

counter was staged to please Modi and earn rewards. The police had claimed that the four had plans to kill Modi and carry out other terrorist acts. Significantly, one officer who figures in the Jahan encounter case is

“Such a step by a judicial officer has rarely been seen in the past, at least in Gujarat.”

AMIT SHAH, Gujarat Minister of State for Home

